



Notification Waiver Determination

Accent Group – The Athlete’s Foot in Karrinyup, WA

Acquisition	Accent Group Limited (Accent) applied for a notification waiver in respect of its proposed acquisition, through its subsidiary The Athlete’s Foot Australia Pty Ltd, of the following assets of The Athlete’s Foot (Karrinyup): (a) business records; (b) plant and equipment; (c) consumables; and (d) stock on hand, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 August 2026

Parties to the Acquisition	The acquirer, Accent, is a footwear retailer and wholesaler, operating a multi-brand, omnichannel business model. Accent’s portfolio encompasses several brands and approximately 900 stores across Australia and New Zealand, as well as a number of online platforms. Its brands include The Athlete’s Foot, Skechers, Platypus, Hype DC, Stylerunner, and others, covering categories from youth fashion to outdoor, designer and performance. The Athlete’s Foot (Karrinyup) is a The Athlete’s Foot franchisee store that has been operating under a franchise agreement with Accent. The store is located in Karrinyup, Western Australia. The Athlete’s Foot is a retail supplier of athletic and lifestyle footwear and accessories. Both The Athlete’s Foot and other Accent brands (such as Skechers, Platypus, Hype DC and Stylerunner) are active in the retail supply of footwear in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. the Acquisition involves the transfer from a franchisee to the franchisor with no change in the number of The Athlete’s Foot stores in the area b. there are alternative suppliers of footwear, including sports footwear, to customers in the local areas surrounding Karrinyup and in Australia more broadly. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**